

26STCP02038 26STCP02038

County: los-angeles

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Case Number: 26STCP02038 Hearing Date: August 27, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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CHRISTINE DE ANDA, et al.

Petitioner(s),

vs.

COUNTY

OF LOS ANGELES, et al.,

Respondent(s).

Case No.:

26STCP02038

Hearing Date:

August 27, 2026

[TENTATIVE]

ORDER RE: MOTION TO QUASH SEARCH WARRANT

Petitioner Christine De Anda ("Petitioner") moves to quash a search warrant ("Warrant") obtained by respondent County of Los Angeles, Department of Animal Care and Control ("Respondent") to seize approximately 303 animals seized from Petitioner on or about March 20, 2026 ("Seized Animals").

The motion is denied.

I.

Background

Petitioner operates Rock N' Pawz Rescue ("Rescue"), a nonprofit animal rescue organization. (De Anda Decl., ¶ 2.) Petitioner contends the Rescue's animals are frequently in poor condition because the Rescue specializes in caring for animals which most shelters would deem unadoptable. (De Anda Decl., ¶ 3.) The Seized Animals include Rescue animals as well as Petitioner's pets. (De Anda Decl., ¶ 4.)

On March 20, 2026, Respondent executed the Warrant and seized the Seized Animals ("Seizure"): 232 dogs, 65 cats, two goats, a goose, a parrot, a pig, and a rabbit. (De Anda Decl., ¶¶ 13-17.)

On May 29, 2026, Petitioner filed her Verified Petition for Writ of Mandate and Complaint for Declaratory, Injunctive, and Other Relief ("Petition"). On July 6, 2026, Respondent demurred to the Petition.

On June 24, 2026, Petitioner filed the instant motion to quash the Warrant, direct Respondent to release and return the Seized Animals, and issue a writ of mandate. On July 10, 2026, the Court heard and denied Petitioner's ex parte application for an order to advance hearing date and shorten time on the instant motion. The same day, the Court called Petitioner's ex parte application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction and continued the hearing to that afternoon. Still that same day, the Court heard Petitioner's ex parte application for a TRO and OSC and granted the application in part. The Court granted a TRO restraining Respondent only from euthanizing or destroying any of the seized animals. The Court further granted an OSC re: preliminary injunction only for the same restraint. The Court ordered Respondent could apply for ex parte relief if it determined

euthanasia or destruction of any specific Seized Animal was urgently required during the pendency of the TRO. To date, Respondent has made no requests for ex parte relief.

On July 13, 2026, Petitioner filed her supplemental supporting brief pursuant to the OSC. The same day, Petitioner filed a notice of lodging indicating she lodged a flash drive containing video recording. On July 23, 2026, Respondent filed its opposition to the OSC. The same day, Respondent objected to the contents of the flash drive lodged with the Court on the basis that Petitioner has not served Respondent with its contents.

On July 30, 2026, the Court heard the OSC and granted a preliminary injunction restraining Respondent from euthanizing/destroying any of the Seized Animals pending resolution of the underlying writ matter. The Court noted that Respondent could seek ex parte relief if it determines euthanasia/destruction of any specific Seized Animal or Animals has become urgently necessary. The Court noted for clarity that its order did not alter or modify the search warrant.

Petitioner represents that Department A19 at the Antelope Valley Courthouse was scheduled on August 21, 2026 to hear Respondent's "Motion/Petition for Order re Handling of Seized Animals," in which Respondent requested relief from the restriction in the Warrant preventing Respondent from euthanizing or destroying the animals.

To date, neither party has reported to the Court that a criminal matter, based on the underlying allegations of the instant petition, has been filed against Petitioner.[1]

II.

Discussion

Before reaching any issue pertaining to the merits of the seizure, the Court must first address threshold questions of authority and procedure. The motion, as presented, does not invoke a mechanism through which this Department may lawfully grant the relief requested.

The Penal Code provides for a post-seizure administrative hearing to determine the validity of a seizure of animals under reasonable belief that such prompt action is required to protect the health or safety of

the animal or others. (Pen. Code § 597.1(f).) This provision applies regardless of whether animals are seized pursuant to a warrant. (*Bakos v. Roach* (2025) 108 Cal.App.5th 390.)

As the Court previously ruled—without reaching the merits of Respondent’s pending demurrer—mandamus review over the post-seizure administrative hearing is appropriate. (See *Broden v. Marin Humane Society* (1999) 70 Cal.App.4th 1212, 1217-18.) However, this Court also expressly noted that it “may not have jurisdiction to intercede in any criminal action.” (Min. Order 7/30/26, p. 4.) Here, Petitioner provides no authority establishing that this Department may, purely under its mandamus authority, quash a criminal search warrant issued by another Superior Court judge.

Only the Courts of Appeal and the Supreme Court of California may reverse, modify, or affirm an order or judgment of a superior court judge. (Code of Civil Procedure [“CCP”] § 43.) “A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned.... Appellate jurisdiction to review, revise, or reverse decisions of the superior courts is vested by our Constitution only in the Supreme Court and the Courts of Appeal.” (*Ford v. Superior Court* (1986) 188 Cal.App.3d 737, 742.) Further, “[o]ne department of the superior court cannot enjoin, restrain, or otherwise interfere with the judicial act of another department of the superior court.... A judgment rendered in one department of the superior court is binding on that matter upon all other departments until such time as the judgment is overturned.” (*Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1450; see also *Silverman v. Superior Court* (1988) 203 Cal.App.3d 145, 151.)

Petitioner argues that quashing the Warrant seeks only the relief this Court has already found it has jurisdiction to offer, namely, “to review the administrative decision finding the Seizure valid and to make provisional injunctive orders in aid of its jurisdiction.” (Reply at 2.) However, Petitioner is in fact asking one Superior Court judge to review, direct, or override a warrant issued in a coordinate department. This Court lacks jurisdiction to grant such relief. (*Glade v. Glade*, *supra*, 38 Cal.App.4th at p. 1450.) Put differently, even if the Warrant contained defects, the remedy would lie through criminal special proceedings specified in statute or appellate review, not through collateral attack by a coordinate civil department.[2]

Both parties' briefing reflects some misunderstanding of the distinct roles played by criminal procedure, post-seizure administrative review, and civil mandamus. Petitioner's motion assumes that a civil department may quash a criminal search warrant issued by a coordinate judge, which it cannot. Respondent appears to overstate the extent to which Penal Code section 1536 limits this Court's ability to review the administrative post-seizure determination.[3]

Ultimately, neither misconception alters the dispositive point: the relief Petitioner seeks cannot be granted through this motion.

The Court likewise declines to issue a writ of mandate through this motion. While mandamus provides an avenue for judicial review of an administrative determination, mandamus review cannot be invoked by motion. The statutory scheme requires a certified administrative record, full briefing, and a noticed writ hearing. Petitioner cannot bypass those requirements by packaging writ relief inside a motion to quash.[4] For the same reason, the Court declines to order immediate release or return of the Seized Animals by way of this motion.

III.

Conclusion

This Court does not have the authority to grant the relief requested. The motion is therefore DENIED.

Date: August 27, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

As noted in the Court’s order on the OSC re Preliminary Injunction, if there were a criminal case currently pending against Petitioner based on the underlying allegations in the petition, it is possible that Government Code section 945.3 would bar Petitioner’s action in this Court. (Min. Order 7/30/26, fn. 2.)

[2]

If no criminal action is pending, an owner of property seized may make a motion under Penal Code sections 1539 and 1540 for return of property seized. (Avelar v. Superior Court (1992) 7 Cal.App.4th 1270, 1276.) Such a motion is a separate “special proceeding,” and specifically, a “criminal special proceeding.” (Ibid. [motion under Penal Code sections 1539-1540 is a special proceeding]; see Ensoniq Corp. v. Superior Court (1998) 65 Cal.App.4th 1537, 1547 [“A ‘special proceeding’ is one which is distinct from any underlying litigation”]; see also People v. Superior Court (Laff) (2001) 25 Cal.4th 703 [“Laff”, [hearings under Penal Code section 1524 are a “criminal special proceeding”].)

[3]

To the extent that Respondent again suggests that Penal Code section 1536 deprives this Court of jurisdiction to review the post-seizure administrative decision, the Court has already rejected that interpretation. Nothing in

section 1536 divests a civil writs department of mandamus authority to review an administrative decision under Penal Code section 597.1.

[4]

In fact, if the Court did rule on the Petition at this juncture, Petitioner would not prevail. Mandamus review of an administrative adjudicative hearing is based on the administrative record, with minor exceptions. (See CCP § 1094.5(e).) It is the petitioner's burden to demonstrate that the administrative record does not contain sufficient evidence to support the agency's decision. (State Water Resources Control Board Cases (2006) 136 Cal.App.4th 674, 749.) Petitioner is obligated to lay out the evidence favorable to the other side and show why it is lacking. "Failure to do so is fatal" to any substantial evidence challenge and "is deemed a concession that the evidence supports the findings." (Defend the Bay v. City of Irvine (2004) 119 Cal.App.4th 1261, 1266.) As Petitioner does not cite to the administrative record, the Court is not yet in possession of the record, and, to the Court's knowledge, the record is not yet certified, Petitioner cannot make the necessary showing.